



File No.: EXP202301224

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on 19/01/2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the defendant), regarding the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) of the GDPR.

The reasons supporting the complaint are as follows:

The claimant states that the defendant is responsible for two cameras installed at their residence that are clearly oriented towards the public road, without any prior administrative authorization for this.

They provide images of the location of the cameras.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the defendant for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 08/02/2023, as evidenced by the acknowledgment of receipt in the file.

On 13/02/2023, this Agency received a response stating that:

“FIRST: The video surveillance cameras installed in my home are for private use and no recording or processing of personal data is carried out.

SECOND: The purpose of the installation is to preserve the safety of people, property, and facilities, in light of the existence of neighbor harassment, threats, insults, high-speed driving posing a risk to my family, and intentional damage to our vehicles by residents at number XX of this same street. As evidenced by previous complaints, as well as in three reports to our vehicle insurance company (license plates (...) and (...), (...), where we have provided the recording of the moment of such damages by these neighbors). The only way we have had to contain such aggressions is through the installation of this system. Now they only act when they know they are out of the reach of these cameras.

THIRD: The retention period for the images is 3 days and recordings are only made when the cameras detect movement of people near our property and facilities or at will, as a means of evidence.

FOURTH: They capture the part of the public road necessary to fulfill the stated purpose.

FIFTH: There are signs warning of the existence of a video surveillance area.”

With the written response, photographs are provided showing that the field of vision of the cameras affects part of the public road.

On 13/02/2023, the AEPD informed that it is necessary to clarify certain aspects:

- Once the documentation submitted in the file was analyzed, it was noted that the field of vision of the external cameras that make up the system may not comply with data protection regulations, as the capture of the public road is excessive, for which it is requested that clear images of their field of vision be submitted again, within the timeframe established in this document. To this end, it is reminded that cameras cannot capture excessive public road, but only a minimum proportional space that serves their purpose, the control of the security of the home and its occupants. It is also reminded that the field of vision of the cameras cannot include spaces that are the property of third parties. It is important to know that sometimes it is sufficient to reorient the device so that its field of vision is modified and captures exclusively its property; other times the camera cannot be relocated, and then privacy masks can be introduced to obscure or veil the spaces that the cameras cannot capture.

- Furthermore, in the event that the public road is captured, even minimally, a clear photograph of the

informational sign(s) regarding the existence of a video surveillance system must be provided, clearly stating the identity of the person responsible for the video surveillance system (in this case B.B.B.) and its address, for the exercise of the rights recognized in the data protection regulations.

Upon receiving this supplementary information request on 13/02/2023, on 14/02/2023 a written response was received stating:

"Mr. B.B.B. with DNI ***NIF.1 and address at ***ADDRESS.1, phone ***PHONE.1 and email ***EMAIL.1.

I DECLARE RESPONSIBLY: That the video cameras installed in my home are for private use and their current purpose is the exercise of exclusively personal and domestic activities.

I understand that in this case the domestic exception can be applied as it applies to recordings of public spaces using private devices.

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personal and private. This declaration replaces any other I may have made regarding my personal and domestic cameras prior to this."

On February 15, 2023, the respondent submitted a new document indicating:

"...- The cameras I currently have in my home do not capture the public road, so I cannot be requested to provide clear images from their field of view, as it is a private space. To this end, it is noted that the cameras I own also do not capture spaces that belong to third parties. They are currently oriented so that their field of view captures exclusively my property; and with this premise, I can relocate them wherever and however I see fit since they are not fixed to any immovable structure, and therefore are mobile, like any independent video camera or one integrated into a mobile phone. The cameras I own should be considered, as declared here, as being used exclusively for personal and domestic activities as they do not capture the public road or any other external or third-party space.

- Likewise, as in this case the public road is not captured, even minimally, I do not provide a photograph of any informational sign regarding the existence of a video surveillance system of my property which, if it existed in my home, does not currently capture the public road or external spaces..."

THIRD: On February 16, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On April 28, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

Upon notification of the Initiation Agreement, the respondent submitted a written statement in which, in summary, they stated:

"ON FEBRUARY 15, 2023, I SUBMITTED A WRITTEN STATEMENT INDICATING THAT 'THE CAMERAS I HAVE IN MY HOME CURRENTLY DO NOT CAPTURE THE PUBLIC ROAD,' AS INDICATED TO ME BY THE AEPD, IT WAS SUFFICIENT TO REORIENT THEM NOT TO CAPTURE PUBLIC SPACES. REGARDING THIRD-PARTY PROPERTIES, I CLARIFY THAT NONE HAVE BEEN CAPTURED AT ANY TIME.

TO THIS END, I ATTACH IMAGES CAPTURED BY SAID CAMERAS AS WELL AS THEIR LOCATION.

I REQUEST THAT THESE IMAGES, AS THEY PERTAIN TO THE INTERIOR OF MY HOME, NOT BE DISSEMINATED BY THE AEPD AND BE USED TO VERIFY THAT I HAVE PROCEEDED TO REORIENT THE CAMERA SYSTEM OR, IN SUCH A WAY THAT THE VIEWING OF THE IMAGES OBSERVED EVIDENCES THAT THE PUBLIC ROAD IS NOT CAPTURED.

I ALSO REQUEST THAT THIS ALLEGATION BE TAKEN INTO ACCOUNT FOR THE CLOSURE OF THE SANCTIONING PROCEDURE."

FIFTH: On May 9, 2023, a resolution proposal was made, proposing: That the Director of the Spanish Agency for Data Protection proceed to archive the proceedings initiated against B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven,

PROVEN FACTS

FIRST: It is recorded, according to documentation provided by the respondent, that the cameras installed in their home only capture private areas of said home, without any evidence that they capture images of the public road or any other dwelling.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

In response to the allegations presented by the respondent, the following should be noted:

- The respondent alleges that the cameras installed in their home are currently oriented so as not to capture the public road, and that at no time have they captured images of other dwellings. They provide images to justify such assertion, requesting that they not be disseminated by the AEPD.
- In this regard, this Agency has examined the evidence provided, concluding that, indeed, only images of the respondent's own home are captured, without any evidence, even minimally, that they record the public road or any other dwelling, thus no infringement of data protection regulations is determined. Furthermore, it is affirmed that the evidence provided in the Procedure by the respondent will in no case be disseminated.

III

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Article 5.1 c) of the GDPR states the following: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the security of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In the present case, it has been confirmed that the field of vision of the cameras is limited to private areas of the dwelling of the respondent party, therefore, as no infringement is observed, it is considered appropriate to archive the present sanctioning procedure.

Therefore, once the instruction of the present procedure has been carried out, and the evidence provided has been assessed, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to B.B.B. with NIF ***NIF.1

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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